

SHAILESH RAVAL

MINE OF WOES

- **1.5 crore** tonne of limestone worth **Rs 500 crore** has been illegally mined over a decade from Porbandar district.
- Official mining licence holders have been excavating limestone from government or cattle-grazing land near their mines.
- There are **251** official limestone mines in Porbandar and **63** licence holders have been found guilty of illegal mining.
- **12** FIRs have been filed by the Porbandar police with prominent local politicians also charged. Notices have been issued in other cases.



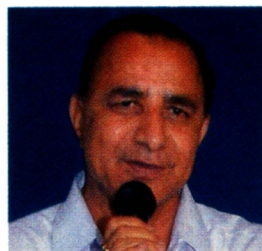
police has registered 12 FIRs in major cases while in other minor cases, the Mines and Minerals Department has issued notices to people with FIRs to be filed later. Rampant illegal mining has also had an impact on the environment. Cattle-grazing land near the Barda hills on the periphery of the district, from where Barda wildlife sanctuary begins, has been ravaged. Illegal mining has also been taking place in the Coastal Regulation Zone (CRZ) in Kuchdi village. A chunk of government land in the village, measuring three sq km, was looted of low-grade limestone worth Rs 119 crore.

In the early '80s, gang wars between the people of Kharva and Mer (two local and dominant OBC castes) over government limestone mining contracts were commonplace and had led to several murders. BJP, when it came to power in the state in 1995,

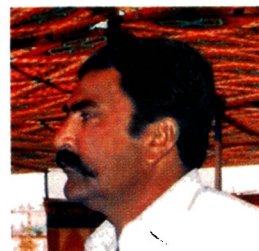
have refused to comment on the issue. Says Bharat Lakhani, Bokhiria's lawyer in his defence, "Bokhiria has many legal limestone mines in Porbandar out of which he is earning more than enough. Where is the need for him to do illegal mining? In fact, he has become a victim of the machinations of a few people who want to settle political scores with him."

There are 251 official limestone mines in the district out of which 129 produce high-grade limestone while the remaining 122 produce the low-grade variety. High-grade limestone is the key raw material in the manufacture of a soap ingredient, soda ash and cement. Low-grade limestone, on the other hand, is used to make stone slabs for homes. A survey by the mineral department found instances of illegal mining by 45 licence holders in the case of high-grade and 18 in the case of low-grade limestone.

There are three different ways of mining illicitly. The kind being done by Bokhiria and the gang, where one mines someone else's property, is rare. A vast majority of the cases are of official licence holders not excavating limestone from their mines but from neighbouring land which either belongs to the government or is officially cattle-grazing land for villagers. The third kind of cases are



KINGPINS: Bokhiria (left) has been arrested; Bhima Dula is charged for Modhwadia's murder



VICTIM: Limestone supplier Modhwadia

ones in which illicit miners take power-of-attorney from official licence holders to operate their mines and then excavate limestone from neighbouring government or cattle-grazing land.

In one case, where Bhima Dula is a lone accused, the police found an unexcavated mine in the name of his late father with limestone stocks worth Rs 77 lakh—a clear indication that the mineral had been mined elsewhere and stocked at the mine.

Bokhiria was arrested only after a PIL was filed by Porbandar-based lawyer Bhagubhai Devani in the high court seeking his arrest on the grounds that while several others were arrested in connection with the case, this man was "roaming scot-free" because of alleged political pressure from Gandhinagar. He was reportedly in the UK when a court order, warning attachment of property, forced him to rush to India and court arrest. The

brought a semblance of order by cracking down on the gangs. The clashes ceased but the murders continue. Over the past decade and a half, nearly half-a-dozen killings have taken place in Porbandar over illicit limestone mining, the last being that of a limestone supplier Mulu Modhwadia, a supporter of Arjun Modhwadia, who was allegedly murdered last year by the henchmen of Bhima Dula for challenging his illegal activities. Bhima Dula was later jailed on the charge of murder in the case.

The Narendra Modi Government denies it tried to shelter anybody involved in illicit mining. Says a Government spokesman, "Though this mining racket has been going on for years, it is our Government that has unearthed it. For this, it should be patted, not rebuked." Clearly, it will be some time before the controversy comes to an end. ■